

163, 180.)

The demurrer to the fourth cause of action for violation of the UCL is sustained on the grounds asserted in the moving papers. Group pleading renders the UCL claim confusing, as the vast majority of the alleged misconduct targets actions attributable to Figueroa. To the extent Plaintiff attempts to base the UCL claim on privacy violations arising from the shared portal, the complaint fails to plead sufficient facts pinning liability on Samsara. In Paragraph 21, Plaintiff alleges that continuous video footage and personal identifying information were accessible to non-supervisory coworkers through a shared portal. (Compl. ¶ 21.) However, Plaintiff appears to attribute this exposure to Figueroa's own administrative choices, alleging that Figueroa's owner left himself logged into the system. (*Ibid.*)

Under heightened pleading standards that apply to UCL claims, collective pleading is insufficient, and Plaintiff fails to allege specific facts showing that Samsara was directly responsible for enabling excessive surveillance, setting overbroad access permissions, or causing the alleged exposure of personal data. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.)

Plaintiff has leave to amend. The Court will evaluate any amended pleading to determine whether Plaintiff has stated facts establishing UCL liability against Samsara.

Leave to Amend

As this is the first time Plaintiff's allegations against Samsara have been challenged, the Court will grant leave to amend. (See *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304 [in the case of an original complaint, it is an abuse of discretion to deny leave to amend unless the complaint is facially incapable of amendment, even where leave to amend is not requested].)

Plaintiff shall have 30 days to amend the complaint. In any amended pleading he files, Plaintiff must specify what each defendant did, instead of grouping them together.

8. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
***HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT / ADVANCED FROM 9/18/2026 PER**
TR OF 7/10/26
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi's Motion to Set Aside Default.

Procedural Background

Plaintiff filed the Complaint on January 20, 2026. On March 11, 2026, Defendants filed a Special Motion to Strike Complaint (Anti-SLAPP – Code of Civil Procedure § 425.16).

Thereafter, on March 12, 2026, Plaintiff filed a Proof of Service of Summons indicating Defendant Kalnytskyi was served by substitute service on January 30, 2026. The declaration of mailing indicates that the summons and complaint were mailed to Mr. Kalnytskyi on that same date.

On March 13, Plaintiff sought default against Defendant Kalnytskyi. A default was entered that same day.

On May 1, 2026, Defendant Kalnytskyi filed the instant motion to set aside.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). “The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

The ‘discretionary’ provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The ‘mandatory’ provision that relates to times when an attorney admits fault in causing the default. That provision is not at issue in this matter.

Analysis

Mr. Kalnytskyi argues that the default was improper because he filed a responsive pleading – i.e. his motion to Special Motion to Strike Complaint – **before** the default was entered. As such, the default is improper.

A default is allowed if no “notice of motion to strike of the character specified in subdivision (f) ... has been filed with the clerk of the court within the time specified in the summons, or within further time as may be allowed....” (Code Civ. Proc. § 585 (b).) Subdivision (f) states, in pertinent part: “A notice of motion to strike within the meaning of this section is a notice of motion to strike the whole or any part of a pleading filed within the time which the moving party is required otherwise to plead to that pleading.” (Code Civ. Proc. § 585 (f).)

It is worth noting that Rutter has the following statement in the section listing the types of filings which preclude a default from being entered: “Arguably, an anti-SLAPP motion (if filed within the time allowed to respond to the complaint) should prevent entry of default, though there is no known case in point.”

Here, the PoS shows that Defendant Kalnytskyi was served via substitute service on January 30, 2026. The proof of mailing indicates that papers were mailed that same date. Per CCP 415.20, service of the summons via substitute service is “deemed complete on the 10th day after the mailing.” (Code Civ. Proc. § 415.20 (a).) Thus, service was considered complete on February 9.

A responsive pleading is due 30 days after service. (Code Civ. Proc. § 412.20 (a)(3).) As such, a responsive pleading – which includes a motion to strike – was due on or before March 11, 2026. Defendant filed the Special Motion to Strike on March 11, 2026.

Based on the above, the Special Motion to Strike was timely filed and counts as a responsive pleading on file that would negate the ability to enter a default.

Conclusion

Defendant Kalnytskyi's motion to set aside the default is **granted**. The anti-slapp motion constitutes his responsive pleading and is scheduled to be heard on August 21.

9. 9:00 AM CASE NUMBER: C26-00207

CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI

***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT AS TO AKRIAN INC AND TO DISMISS AKRIAN INC FROM THIS ACTION**

FILED BY: KALNYTSKYI, ROMAN

TENTATIVE RULING:

Before the Court is Defendant Akrian Inc.'s Motion to Set Aside Default.

Procedural Background

Plaintiff filed the Complaint on January 20, 2026. On May 4, 2026, Plaintiff filed a Proof of Service of Summons indicating that Akrian Inc. was served via substitute service on March 14, 2026. The attached Declaration of Mailing indicates the summons and complaint were mailed on March 16, 2026. Thereafter, on May 5, 2026, Plaintiff sought and obtained entry of default against Akrian Inc. as no responsive pleading had been filed.

On May 13, 2026, Defendant in pro per Roman Kalnytskyi filed the instant motion to set aside entry of default on behalf of Defendant Akrian Inc. The motion sought to set aside the entry of default as well as an order dismissing Akrian Inc. for this action.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted,